

O. Transfer of party status

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1. Party status as patent proprietor

Where the European patent is transferred during opposition proceedings, the new patent proprietor entered in the Register of Patents takes the place of the previous patent proprietor both in the opposition and in the appeal proceedings. His entitlement may not be questioned in these proceedings (**T 553/90**, OJ 1993, 666).

For a transferee of a patent to be entitled to appeal, the necessary documents establishing the transfer, the transfer request and the transfer fee pursuant to **R 22 EPC** must be filed **before** expiry of the period for appeal under **Art. 108 EPC**. Later recordal of the transfer does not retroactively validate the appeal (**T 656/98**, OJ 2003, 385). In appeal proceedings, substitution of another party for the patent proprietor is possible only once the relevant department of first instance has made the entry in the Register or where there is clear-cut evidence of a transfer (**J 26/95**, OJ 1999, 668, **T 593/04**). The procedural requirements to be fulfilled for recording the transfer of a European Patent in the Register (filing of a request, providing evidence, payment of a fee) need not be fulfilled at the same time. If they are met at different times, the transfer takes effect vis-à-vis the EPO from the date on which all of these requirements are fulfilled (**T 128/10**). The original party remains, as long as the transfer has not been proven, a party to the proceedings, with all its rights and obligations (see **T 870/92** of 8 August 1997). A name change does not result in a change of legal identity (see **T 19/97**).

In **T 1068/15** and **T 1001/15** the applicant requested transfer of the patent application during pending appeal proceedings. The Legal Division did not register the alleged transfer. The board considered that it had to examine the question of party status ex officio before dealing with the substance of the case (with reference to **G 2/04**). In doing so it was not bound by the assessment of other departments of the EPO or by the state of the Register (with reference to **T 854/12**).

In T.15/01 (OJ 2006, 153) the board distinguished between the situation where a party acquired a patent through a transfer, as in T.656/98 and through a merger, as in the case before the board. It held that R. 20(3) EPC 1973 (now R. 22(3) EPC) did not apply in the latter case, where the change of proprietor status was caused by universal succession in law. The universal successor of a patent applicant or patentee automatically acquired party status in proceedings pending before the EPO.

The transfer of party status as patent proprietor must be distinguished from a "transfer" of the legal entity from one jurisdiction to another. In T.786/11 the patent proprietor had requested that the address of the "applicant (patentee)" be changed from one in the British Virgin Islands to one in Mauritius and submitted evidence that it had merely changed its address. The board held that both these jurisdictions – unlike many others – allow a legal entity to be transferred from one jurisdiction to the other without any effect on its identity. The board therefore concluded that the respondent had been "transferred" from the British Virgin Islands to Mauritius and had continued as a legal entity under Mauritian law (see also T.2330/10 and T.1458/12).

2. Party status as opponent

2.1. General principles

The status as an opponent cannot be freely transferred (G 2/04, OJ 2005, 549). The opponent does not have a right of disposition over his status as a party. If he has met the requirements for an admissible opposition, he is an opponent and remains such until the end of the proceedings or his involvement in them. He cannot offload his status onto a third party (G 3/97, OJ 1999, 245, T.298/97, OJ 2002, 83).

However, in the following two circumstances the status as an opponent may be transferred:

- in the case of universal succession of the opponent (G 4/88, OJ 1989, 480, T.475/88, T.1091/02, OJ 2005, 14); or

- when a relevant part of the opponent's business has been transferred (G 2/04, T.670/95), in which case the transfer or assignment of the opposition to a third party has to be made as part of the transfer or assignment of the opponent's business assets together with the assets in the interests of which the opposition was filed (G 4/88, OJ 1989, 480).

Opponent status may also be transferred in opposition appeal proceedings (T.659/92, OJ 1995, 519, T.670/95, T.19/97). In T.563/89 the board held that the right to lodge an appeal may also be transferred to a third party, based on the same reasons as developed in case G 4/88.

A transfer of an opposition has to be requested at the EPO together with supporting evidence before it can take effect (T.1137/97, T.19/97, T.1911/09). This does not apply to cases of universal succession where the opponent status is automatically acquired from the date of the effective succession (T.6/05, T.425/05, T.2382/10); in the case of universal

succession the change may – upon request and production of evidence by either party – be recorded with retroactive effect as from the effective date of the legal succession (T 2357/12).

The EPO has a duty to examine, ex officio, the status of the opponent at all stages of the proceedings. This duty not only extends to the admissibility of the original opposition, but also to the validity of any purported transfer of the status of opponent as a new party (T 1178/04, OJ 2008, 80). Even if the objection against the admissibility of the appeal and the appellant's status as party is raised very late, namely at the beginning of the oral proceedings before the board, this issue has to be examined ex officio at every stage of the appeal proceedings; an appellant's objection against the late introduction of this issue can therefore not succeed (T 1415/16).

2.2. Universal succession

In T 349/86 (OJ 1988, 345) the board referred to R. 60(2) EPC 1973, which stated that in the event of the death of the opponent the opposition proceedings could be continued by the EPO of its own motion, even without the participation of the heirs. According to the board this may be read as definitely stating that an opposition may be transferred to a deceased opponent's heirs and, by analogy, to a company absorbing the opposing company by merger or takeover (see also T 1091/02, OJ 2005, 14). In G 4/88 the Enlarged Board confirmed that the opposition may be transferred to the opponent's universal successor in law (point 4 of the Reasons). In T 475/88 the board held that the appeal was admissible because the opponent status had been transferred to the company that filed the appeal as a result of its merger with the initial opponent.

In T 2357/12 the board was concerned with a situation in which the transfer of all assets of an enterprise had been made whose legal entity had subsequently been dissolved. The board noted that "universal succession" as an exception to R. 22(3) EPC was a concept of procedural law under the EPC and was to be construed autonomously by the EPO, independently of national law. Under the case law of the boards of appeal, the main considerations for acknowledging that a universal succession has taken place were legal certainty as to the person of the successor and the need to avoid a legal vacuum. The transfer of all assets of an enterprise, immediately followed by its dissolution as a legal entity, could therefore constitute universal succession. The board concluded that although there was no genuine concept of "universal succession" under the national law in question (State of Delaware), the case at hand was to be considered one of universal succession under the EPC. See also T 1755/14 for a case in which universal succession occurred through "accrual" ("Anwachsung" under German law).

In T 660/15 the board agreed with T 2357/12 that the concept of universal succession had to be interpreted autonomously, i.e. independently of national law. An essential point for accepting universal succession was that there was only one transferee possessing all the assets and the former opponent had ceased to exist, so that no legal uncertainty could arise about who the opponent was. See also T 1575/17, which was a case of universal succession as per the case law of the boards of appeal (G 4/88, T 475/88 and T 2357/12) because both the change of the company's legal form and the merger with another

company had given rise, each time, to a single legal entity which remained the owner of all the opponent company's assets and liabilities.

In T. 659/92 (OJ 1995, 519) there had been no universal succession. There was nothing to indicate that the opponent's business assets had been contractually transferred. The board concluded that a unilateral declaration by the owner of rights that he had transferred industrial property rights and opponent status in proceedings relating to a particular right could not of itself effect universal succession by transfer of business assets.

In T. 531/11 the board held that an excerpt from a purchase contract stating that a company had been acquired "through sale of individual business assets" showed that under the terms of the contract there has been no universal succession.

2.3. Transfer together with the business assets to which the opposition relates

In G. 4/88 the question referred to the Enlarged Board (T. 349/86 of 29 April 1988) was whether an opposition instituted before the EPO is transferable only to the opponent's heirs or whether it may be transferred freely either with the opponent's enterprise or with a part of that enterprise operating in a technical field in which the invention to which the patent in suit relates can be exploited. The Enlarged Board examined the situation in which the opposition has been instituted in the interest of the opponent's business or part of that business. The term "business" was understood in a broad sense as describing an economic activity which is or could be carried on by the opponent and which constituted a specific part of his business assets. In such a situation, the opposition constituted an inseparable part of those business assets. Insofar as those assets were assignable under applicable national laws, the opposition which was part of them had also to be regarded as transferable. The Enlarged Board answered the referred question by stating that an opposition pending before the EPO may be transferred or assigned to a third party as part of the opponent's business assets together with the assets in the interests of which the opposition was filed. Applying G. 4/88 to the facts of the case the board in T. 349/86 thus held in its decision of 30 November 1989 that the universal successor in title of the original opponent had transferred its opponent status to the singular successor of part of its industrial and commercial activity (operations in the commercial vehicle field) to which the opposition related.

In T. 9/00 (OJ 2002, 275) the board found as follows: if, as was the case, the subject of an opposition is assigned to two different parts of the opponent's company, the status of opponent can pass to a third party only if both parts or the entire company are transferred to it.

In T. 298/97 (OJ 2002, 83) the board held that the transfer may be to one, and one only, successor or transferee.

In T. 799/97 the opponent had gone bankrupt during the opposition proceedings. The board held that the opponent's entire business, and so the activities to which the opposition related, had been transferred to the company with which the administrator had concluded a contract of sale. Not all receivables and liabilities had been acquired, but that had not

been established as an essential prerequisite for the transfer of opponent status in G 4/88 and T 659/92. In T 384/08 the board confirmed that the mere fact that certain assets were explicitly excluded in an assignment contract was as such not sufficient for concluding that the contract did not result in the transfer of a business or a specific part of it.

In T 423/11 of 11 March 2015 the board held that the transferred assets were those in the interest of which the opposition had been filed. The objection that not all the corresponding assets had been transferred, because exceptions had been made for some patents, had no bearing on the decision. It was true that some patents had not been transferred and only a licence had been given. However, a licence conferred on the licensee the necessary rights to undertake any action to defend the patent under licence. Therefore those exceptions did not deprive the transferee of the general rights conferred on it by the transfer of the other assets.

In T 1421/05 the board held that where the business assets in relation to which an opposition was filed have been transferred and at the same time the transferor has contractually agreed to transfer the opposition to the transferee, the status of opponent remains with the transferor in the absence of there being filed with the Office (a) evidence sufficiently evidencing the transfer and (b) a request to recognise the transfer of opponent status. Where in such a case the transferor subsequently ceases to exist but has a universal successor, the status of opponent is capable of passing to that successor.

In T 2357/12 the board held that successions by law where parts of an enterprise form new legal entities or are immediately merged with other entities (de-merger, spin-off, secession merger), would be considered to be cases of universal succession under national (e.g. German) law. The continued existence of the former opponent, and the fact that it would not be possible to decide at first sight to which of the resulting legal entities the part of the enterprise to which the opposed patent was assigned, might result in applying the rules of singular succession under the procedural law of the EPC (see T 136/01, T 1514/06, T 1032/10).

In T 445/16 the board held that, although a spin-off merger ("Umwandlung durch Ausgliederung") was seen as a form of universal succession in German national law, it was, in the context of transfer of opponent status under EPC law, considered to be a transfer of assets within the meaning of G 4/88. See also T 848/13.

In T 833/15 the board held that the crucial factor was whether the contested patent related to the transferred part of the commercial activity. It was immaterial whether, based on the wording of the agreement, the contested patent (if part of the opponent's assets) would have had to be transferred or would have been licensed to the transferee under the terms of a licence agreement as an industrial property right used together with the "Industrial Business". The only thing that mattered was the connection between the opposition as originally filed and the commercial activity which the opponent was conducting when it filed the opposition but later transferred as a business asset. The opponent status was then transferable as part of this asset (see G 4/88, points 5 and 6 of the Reasons).